

Department of Education

Colorado State Board of Education

RULES FOR THE ADMINISTRATION OF THE EDUCATOR RECRUITMENT AND RETENTION PROGRAM

1 CCR 301-113

[Editor's Notes follow the text of the rules at the end of this CCR Document.]

1.00 STATEMENT OF BASIS AND PURPOSE

Section 22-60.3-202, et seq. C.R.S., creates the Educator Recruitment and Retention Program. The purpose of the program is to provide support to members of the armed forces, nonmilitary-affiliated educator candidates, and local education providers to recruit, select, train, and retain highly qualified educators across the state.

The statutory authority for these rules is found in section 22-60.3-202(5), C.R.S., which permits the State Board to adopt rules as necessary to implement the program.

2.00 DEFINITIONS

- 2.00(1) Alternative teacher: A teacher who has been issued an alternative teacher license as defined in 22-60.5.-201(a), C.R.S.
- 2.00(2) CTE credential: A Career and Technical Education authorization as defined in 22-60.5-111(9), C.R.S.
- 2.00(3) Department: The Colorado Department of Education as defined in section 24-1-115, C.R.S.
- 2.00(4) Educator preparation program: An approved program of preparation, as defined in section 22-60.5-102(8), C.R.S., or an alternative teacher program, as defined in section 22-60.5-102(5), C.R.S., or other organization that provides educator preparation for a qualified program participant and is approved by the Department.
- 2.00(5) Program: The Educator Recruitment and Retention Program created in section 22-60.3-202, C.R.S.
- 2.00(6) Local Education Provider: A school district, a charter school authorized by a school district pursuant to Part 1 of Article 30.5 of Title 22, a charter school authorized by the State Charter School Institute pursuant to Part 5 of Article 30.5 of Title 22, or a Board of Cooperative Services created and operating pursuant to Article 5 of Title 22 that operates one or more public schools.

- 2.00(7) Member of the armed forces: A member of the United States Army, Air Force, Navy, Marine Corps, Coast Guard, Space Force or any of the armed forces' active reserve components or of the National Guard.
- 2.00(8) Qualified program participant: An individual who meets the program criteria and is either a member of the armed forces or a nonmilitary-affiliated educator candidate.
- 2.00(9) Rural school district: A Colorado school district that the Department determines is rural, based on the geographic size of the school district, the distance of the school district from the nearest large, urbanized area and the total student enrollment is 6,500 or fewer students in pre-kindergarten through twelfth grade.
- 2.00(10) Separation: An honorable discharge, release from active duty, release from custody and control of the armed forces or a similar change in active or reserve status.
- 2.00(11) Shortage area: An educator shortage area determined by the State Board of Education.
- 2.00(12) Small rural school district: A Colorado school district that the Department determines is rural, based on the geographic size of the school district, the distance of the school district from the nearest large, urbanized area and that enrolls fewer than 1,000 students in pre-kindergarten through twelfth grade.
- 2.00(13) State Board of Education: The Colorado State Board of Education established by section 1 of Article IX of the Constitution of the State of Colorado.
- 2.00(14) Temporary educator eligibility (TEE) educator: An educator who has been issued a temporary educator eligibility authorization as defined in 22-60.5-11(5), C.R.S.

3.00 FINANCIAL ASSISTANCE

- 3.01 A member of the armed forces with honorable discharge status or currently serving, or a nonmilitary-affiliated educator candidate may apply to the program to receive financial assistance of up to \$7,500 for the tuition cost of an educator preparation program in which the applicant is enrolled.
- 3.02 The department shall review each application and determine whether the applicant meets the following criteria for participation in the program:
- 3.02(1) Is enrolled in a Colorado-approved traditional or alternative educator preparation program or institute of higher education for applicants pursuing a CTE credential;
- 3.02(2) Meets one of the following:

- 3.02(2)(a) Has earned bachelor's or higher degree from a regionally accredited college or university and has secured employment as an alternative teacher or temporary educator eligibility (TEE) educator in a rural or small rural district; or
 - 3.02(2)(b) Is currently employed as a paraprofessional in a school district, charter school or BOCES and is working toward a baccalaureate degree as required to pursue a professional teaching license; or
 - 3.02(2)(c) Has secured a position as a CTE instructor in a rural or small rural district and meets state CTE requirements:
 - 3.02(3)(c)(i) as outlined in 23-60-304(3)(a) and section 4.04 of 1 CCR 301-37; or
 - 3.02(3)(c)(ii) has the equivalent of eighteen (18) semester hours of postsecondary enrollment and six (6) years of military experience that are applicable to a CTE credential.
- 3.03 Subject to available appropriations, upon determination of qualification, the Department shall provide to the educator preparation program in which the qualified program participant is enrolled financial assistance for the tuition cost of the educator preparation program up to the total amount of the applicant's award. The maximum award for each applicant is \$7,500.
- 3.03(1) As a condition of receiving financial assistance, applicants must agree to serve for a minimum of three years in a rural or small rural district or in an educator shortage area, as determined by the State Board of Education. Residency year(s) in an approved alternative preparation program can count towards the years of teaching in a rural or small rural school district or an educator shortage area.
 - 3.03(1)(a) For programs that are more than one year in length, payments may be made to the educator preparation program in multiple installments throughout the duration of the program. For programs lasting more than one year, or for situations requiring payments to be made subsequent to the year of the original award, payment will depend on availability of funds for the fiscal year in which payment is requested.
 - 3.03(1)(b) The Department will issue a grant award letter to the educator preparation program for an amount of up to \$7,500. The total amount of payment(s) made will depend on the actual tuition amount of the educator preparation program. The grant payments may not exceed the tuition amount of the program.

3.04 If the qualified program participant does not fulfill the service condition outlined in Rule 3.03(1), and without documentation of good cause (such as illness, death, spouse military transfer, etc.), the participant shall repay the awarded financial assistance to the Department within 90 days of leaving their employment in a rural school district, small rural school district, or educator shortage area.

3.04(1) Program participants must sign an agreement acknowledging the commitment to teach in a rural school district, small rural district or shortage area for three years as a condition of funding and agreeing to pay back the funds if they do not complete the service obligation.

3.04(2) Program participants must also annually certify their continued employment in a rural school district, small rural district, or shortage area for the entire three-year service period.

4.00 APPLICATIONS

Qualified program participants who wish to receive financial assistance must submit an application to the Department.

4.01 Application timeline

4.01(1) The Department will make the application form available to applicants by Feb. 1, 2022, and annually every year after that.

4.01(2) Applications will be accepted on a rolling basis.

4.01(3) The Department will notify applicants of the decision on their application within 60 days of receipt of the application.

4.02 Application contents

4.02(1) The Department will develop a program application form. Each application, at a minimum, must specify:

4.02(1)(a) Applicant name;

4.02(1)(b) Race;

4.02(1)(c) Gender;

4.02(1)(d) Educator preparation program in which the applicant is currently enrolled;

4.02(1)(e) Military status;

4.02(1)(f) Highest level of education attained;

4.02(1)(g) Applicable employment as a paraprofessional;

4.02(1)(h) Documentation of relevant coursework, military experience, or other professional experience which meets the eligibility criteria for a CTE credential;

4.02(1)(i) Relevant employment documentation:

4.02(1)(i)(i) Current verification of employment as a CTE instructor, alternative teacher, or paraprofessional; or

4.02(1)(i)(ii) Executed intent to hire form; and

4.02(1)(j) Agreement to teach for three years in a rural or small rural school district or shortage area and agreement to provide the Department with annual certification of such employment on a form provided by the Department.

Editor's Notes

History

New rule eff. 12/30/2021.

Entire rule eff. 11/30/2022.

Entire rule eff. 06/01/2026.